ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General
HAIYANG A. LI
Deputy Attorney General
State Bar No. 288063
300 South Spring Street, Suite 1702
Los Angeles, CA 90013-1230
Telephone: (213) 269-6404
Fax: (916) 731-2120
E-mail: Haiyang.Li@doj.ca.gov
Attorney for Defendants
Santiago Meza-Gonzalez and Jose Melano

IN THE UNITED STATES DISTRICT COURT

FOR THE NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, **v.** **SANTIAGO MEZA-GONZALEZ (CHP BADGE #023295), IN HIS INDIVIDUAL CAPACITY); JOSE MELANO (CHP BADE #023054), IN HIS INDIVIDUAL CAPACITY; AND DOES 1 THROUGH 10, INCLUSIVE,** Defendants.	3:26-cv-08271-ASK **DEFENDANTS SANTIAGO MEZA-GONZALEZ AND JOSE MELANO'S NOTICE OF MOTION AND MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT AND MOTION TO STRIKE PORTIONS OF THE FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF** Date: December 9, 2026 Time: 1:30 p.m. Courtroom: 4 Judge: The Honorable. Ajay S. Krishnan Trial Date: Not Set Action Filed: August 10, 2026

TABLE OF CONTENTS

Page

Memorandum of Points and Authorities 2
I. Introduction 2
Summary of Argument 2
Background and Applicable Law 4
I. Background Facts 4
II. A Motion to Dismiss is Appropriate 5
Argument 5
I. The FAC Fails to State a Valid Claim for Judicial Deception 5
II. The FAC Fails to State a Valid Claim for Fabrication of Evidence on the Additional Ground that Plaintiff Was Never Charged with Any Crime. 7
III. Plaintiff's Claim for Warrantless Entry of His Vehicle Fails as Defendants Had Reasonable Ground to Believe that Exigent Circumstances Existed and/or That Plaintiff Had Committed a Crime 7
A. It is reasonable to assume that Plaintiff needed emergency assistance upon finding Plaintiff unconscious in the driver's seat of his vehicle at the beginning of the encounter. 7
B. It is reasonable to assume that Plaintiff committed a crime upon seeing a cup of what appeared to be alcohol with Plaintiff while Plaintiff's vehicle was illegally parked on the side of the freeway 8
IV. Plaintiff's Claim Related to the Search of His Vehicle and His Subsequent Arrest Fail as There Existed Probably Cause Under the Facts as Alleged in the FAC 9
V. Plaintiff's FAC Fails to Allege Sufficient Facts to Show Plausible "But-For" Causation Necessary for a Valid Claim of Retaliation. 11
VI. Defendants Are Entitled to Qualified Immunity on Each of Plaintiff's Causes of Action. 12
VII. Leave to Amend Should be Denied as Futile 13
VIII. Plaintiff's Prayer for Attorney's Fees and for Punitive Damages Should be Stricken or Dismissed 14
A. Plaintiff has alleged no well-pled facts which supports punitive damages against either Defendant 14
1. Plaintiff is not entitled to attorneys; fees as a pro se litigant 15
Conclusion 15

TABLE OF AUTHORITIES

Page

CASES

Ashcroft v. Iqbal
556 U.S. 662 (2009) 5, 6, 10, 12

Bell Atlantic Corp. v. Twombly
550 U.S. 544 (2007) 5

Navarro v. Black
250 F.3d 729 (9th Cir. 2001) 5

STATUTES

United States Code Title 42
§ 1983 ..... 2, 7, 15
§ 1988 15

California Vehicle Code
§ 21718 8
§ 23152(a) 8

CONSTITUTIONAL PROVISIONS

United States Constitution
First Amendment 11
Fourth Amendment 8, 9
Fourteenth Amendment 7

COURT RULES

Federal Rules of Civil Procedure
Rule 12(b)(6) 5
Rule 12(f) 2

NOTICE IS HEREBY GIVEN that on December 9, 2026, at 1:30 p.m., in the above-entitled Court, located at 1301 Clay Street, Oakland, California, Defendants Santiago Meza Gonzalez and Jose Melano, ("Defendant Meza-Gonzalez," Defendant Melano," and collectively "Defendants") will and hereby do move this Court for an order dismissing Plaintiff's First Amended Complaint, ("FAC") with prejudice, and striking portions of the FAC pursuant to Federal Rule of Civil Procedure 12(b)(6) and 12(f) on the following grounds:

1. Pursuant to Federal Rule of Civil Procedure 12(b)(6) as each of Plaintiff's claims within the FAC fails to state sufficient facts for a valid cause of action against Defendants;
2. Defendants are entitled to qualified immunity and are therefore not liable for any of the causes of action contained in the FAC
3. Plaintiff's prayer for punitive damages and attorneys' fees should be stricken as there are no well-pled facts to support an award of punitive damages and Plaintiff is not entitled to attorneys' fees under 42 U.S.C. section 1988 as a pro se litigant.

This Motion is based upon this Notice, the supporting Memorandum of Points and Authorities, the records and papers on file herein, and on such further oral and documentary evidence as may be presented at the hearing of this Motion.

Dated: October 26, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General

/s/ Haiyang A. Li

HAIYANG A. LI
Deputy Attorney General
Attorney for Defendants
Santiago Meza-Gonzalez and Jose Melano

SF2026603537
Newanforbi - Motion to Dismiss (final with tables).docx

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

This action arises from a search of Plaintiff Brendan Nforbi's ("Plaintiff") vehicle and Plaintiff's subsequent arrest for driving under the influence ("DUI") on November 1, 2024. California Highway Patrol ("CHP") Officers Santiago Meza-Gonzalez ("Defendant Meza-Gonzalez") and Jose Melano ("Defendant Melano") (collectively "Defendants") first noticed Plaintiff's vehicle stopped on the side of the Interstate 580 and stopped to check if needed assistance. Upon seeing Plaintiff unconscious in the driver's seat, Defendants opened the passenger side door and found Plaintiff was asleep but also noticed a strong smell of alcohol. Defendants began a DUI investigation and administered field sobriety tests before arresting Plaintiff on suspicion of DUI.

Based upon the above, Plaintiff alleges that Defendants searched his vehicle and arrested him without probable cause or a warrant and falsified statements to obtain a search warrant to compel Plaintiff to submit to a blood draw. Although no criminal charges were filed, Plaintiff alleges that the arrest caused Plaintiff to be confined in Santa Rita Jail "under a parole hold" and led to a one-year suspension of Plaintiff's commercial driver's license, among other damages. (ECF No. 5, FAC, ¶ 36 p.11.)

SUMMARY OF ARGUMENT

Plaintiff filed suit against Defendants in their individual capacities alleging various causes of action under 42 U.S.C. section 1983. Defendants seek the dismissal of the entire FAC with prejudice. This Motion to Dismiss with Motion to Strike is brought on behalf of all Defendants pursuant to Federal Rules of Civil Procedure 12(b)(6) and 12(f) on the following grounds:

1. Plaintiff's first cause of action for Judicial Deception against Defendant Meza-Gonzalez only fails as the inconsistencies between the video footage of the incident and Defendant Meza-Gonzalez's sworn statement alleged within the FAC do not plausibly show that Defendant Meza-Gonzalez "made deliberately false statements or recklessly disregarded the truth" when applying for a warrant, nor does the FAC plausibly establish that the alleged

inconsistencies were "material" to the finding of probable cause. Galbraith v. Cnty. of Santa Clara, 307 F.3d 1119, 1126 (9th Cir. 2002).

2. Plaintiff's second cause of action for Fabrication of Evidence against Defendant Meza-Gonzalez only fails as the alleged inconsistencies in the FAC do not plausibly show that Defendant Meza-Gonzalez knowingly fabricated evidence. Moreover, the FAC admits that no criminal charges were brought against Plaintiff due to this incident. (ECF No. 5, FAC, ¶ 34 p.10.)

3. Plaintiff's third cause of action for Unlawful Arrest and Detention against both Defendants fails as there existed probable cause for arrest under the facts as pled within the FAC.

4. Plaintiff's fourth cause of action for Warrantless Entry fails as there existed exigent circumstances to open the door of Plaintiff's vehicle without his consent, i.e., it was reasonable for Defendants to believe that Plaintiff may be in need of emergency medical assistance when they found Plaintiff unconscious or "asleep" in his vehicle on the side of the freeway. (See e.g. ECF No. 5, FAC, ¶ 1, p.2.) Furthermore, Defendants had probable cause for a search of Plaintiff's vehicle based upon the totality of the circumstances.

5. Plaintiff's fifth cause of action for Unlawful Search fails as there existed probable cause to search Plaintiff's vehicle under the facts as alleged in the FAC.

6. Plaintiff's sixth cause of action for Retaliation fails as the FAC fails to show that retaliatory animus was a "but-for" cause of Plaintiff's arrest. Bostock v. Clayton Cnty., 590 U.S. 644, 656 (2020).

7. Defendants are entitled to qualified immunity for Plaintiff's claims against them as no constitutional violation occurred and/or Defendants violated no clearly established law that applies to the particularized allegations in this case. Pearson v. Callahan, 555 U.S. 223, 231 (2009).

8. Plaintiff's prayer for punitive damages and attorneys' fees should be stricken as the Complaint fails to allege any well-pled facts supporting an award of punitive damages and Plaintiff is not entitled to attorneys' fees as a pro se litigant.

9. Leave to amend should not be granted as this is Plaintiff's third lawsuit against Defendants with substantively similar claims and the fourth lawsuit against CHP arising out of Plaintiff's November 1, 2024, arrest.

BACKGROUND AND APPLICABLE LAW

I. BACKGROUND FACTS

According to the FAC, on November 1, 2024, Plaintiff was asleep in his vehicle while parked on the shoulder of Interstate 580 when Defendants opened his vehicle's door without his consent or a warrant. (ECF No. 5 FAC ¶ 1, p.2:5.) Defendants then began a DUI investigation, claiming that there was a "strong distinct odor of an alcoholic beverage" coming from Plaintiff, although neither Defendant vocalized this finding on the video that captured the incident. (Id. at ¶ 2, p.2:16-17.) According to Plaintiff, Defendants did not terminate their investigation after Defendant Melano identified the only liquid found in Plaintiff's vehicle as urine (Id. at ¶ 17, pp. 5:25-6:9.) Defendant Meza-Gonzalez subsequently indicated incorrectly that there were beverages in Plaintiff's vehicle on his statement regarding Plaintiff's arrest. (Id. at ¶ 26, p. 8:13-15.)

As part of their DUI investigation, Defendants ordered Plaintiff out of his vehicle and administrated some field sobriety tests but not others because of "uneven ground." (Id. at ¶ 19, p.6:14-17.) Defendants noted that Plaintiff's speech was slurred and that he appeared "very confused and disorientated." (Id. at ¶ 2, p. 2:20.) Plaintiff alleges that video footage of his arrest shows that Plaintiff was able to correctly identify his location and engage in coherent conversation with Defendants. (Id.) Plaintiff refused to take a preliminary alcohol screening test and was subsequently arrested on suspicion of DUI. (Id. at ¶¶ 23 and 24, p.7:9-13.)

Following his arrest, Plaintiff was compelled to submit to a blood draw based upon sworn statements by Defendant Meza-Gonzalez. (Id. at ¶ 29, p.9:3-5.) Plaintiff was placed on a parole hold due to his arrest, but ultimately no charges were filed, and Plaintiff received a certificate classifying the encounter as a detention rather than an arrest from the CHP. (Id. at ¶¶ 31. 32, pp.9:20-10:3.)

II. A MOTION TO DISMISS IS APPROPRIATE

A defendant may assert a defense that a complaint served upon him fails to state a claim upon which relief may be granted by way of a motion pursuant to Federal Rule of Civil Procedure 12(b)(6). The purpose of a motion to dismiss under Rule 12(b)(6) is to test the legal sufficiency of the claims asserted in the complaint. *Navarro v. Black*, 250 F.3d 729, 732 (9th Cir. 2001). Although a complaint does not need to state detailed factual allegations, "a plaintiff's obligation to provide the grounds of his 'entitlement to relief' requires more than labels and conclusions, and a formulaic recitation of the elements of a cause of action will not do." *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 555 (2007). A complaint that alleges "naked assertions" that are "devoid a further factual enhancement" will not suffice. *Ashcroft v. Iqbal*, 556 U.S. 662, 667 (2009). Although generally in reviewing a motion to dismiss the court must accept as true all allegations contained in the subject Complaint, "threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice." *Id*. at 678.

ARGUMENT

I. THE FAC FAILS TO STATE A VALID CLAIM FOR JUDICIAL DECEPTION

To state a claim for judicial deception, a plaintiff must show that the investigator "made deliberately false statements or recklessly disregarded the truth in the affidavit" and that the falsifications were "material" to the finding of probable cause. Galbraith v. Cnty. of Santa Clara, 307 F.3d 1119, 1126 (9th Cir. 2002). A plaintiff must allege, and ultimately establish, that "without the dishonestly included or omitted information, the magistrate would not have issued the warrant. Thus, the plaintiff must establish that the remaining information in the affidavit is insufficient to support probable cause. Hervey v. Estes, 65 F.3d 784, 789 (9th Cir. 1995), as amended on denial of reh'g (Dec. 5, 1995).

Plaintiff alleges there are four inconsistencies between the video of the incident and the contents of Defendant Meza-Gonzalez's report as the basis for his claim of judicial deception. Despite Plaintiff's unsupported assertions to the contrary, none of the factual allegations within the FAC plausibly allege that Defendant Meza-Gonzalez deliberately made false statements to the magistrate judge.

Plaintiff alleges that Defendant Meza-Gonzalez states in his arrest report that he detected "strong distinct odor of an alcoholic beverage" from Plaintiff but neither Defendants ever verbalized "any observation of an alcohol odor at any point" on video. (See ECF No. 5, FAC, ¶ 26, p.7:8.) The simple explanation for this alleged inconsistency is that there was no need to declare the existence of the odor of alcohol aloud. Another possibility is that Defendants' statements regarding the odor of alcohol were not captured on video. The FAC cannot state a claim based upon implication or speculation alone, especially when equally or more likely innocent explanations exist. See Ashcroft v. Iqbal, 556 U.S. 662, 667 (2009)(holding where a complaint pleads facts that are "merely consistent with" a defendant's liability, it "stops short of the line between possibility and plausibility" and will not survive a Motion to Dismiss. Id. (internal quotations omitted).

Similarly, Plaintiff denies that his speech was "slurred" because video footage shows him engaging in "coherent conversation, spelling his name letter by letter and discussing the mechanical details of his rental vehicle." (ECF No. 5, FAC, ¶ 26, p.8:5-7). None of these allegations are inconsistent with slurred speech. Plaintiff also denies that he was "confused and disoriented" because Plaintiff claims that he was able to correctly identify his location and read "distant" signage at the time of his arrest. (Id. at ¶ 26, p. 8:9.) These allegations are irrelevant. Plaintiff's subjective disagreement with Defendant Meza-Gonzalez's determination that Plaintiff was under the influence cannot establish that Defendant Meza-Gonzalez engaged in judicial deception. Plaintiff does not allege that he has any experience as a drug recognition expert and his own opinions of how he looked on video at the time of his arrest are not facts.

Finally, Plaintiff alleges that Defendant Meza-Gonzalez incorrectly stated that there were "beverages" in the vehicle when the only liquid found in the vehicle was urine. (Id. at ¶ 26 p.8:13-15.) This allegation does not show deliberate fabrication. Moreover, based upon the totality of the circumstances, whether beverages were present in Plaintiff's vehicle is not material to establishing probable cause for Plaintiff's blood draw. The FAC admits that Defendants administered field sobriety tests prior to placing Plaintiff under arrest. (Id. at ¶ 53 p.16:9-11). Notably, the FAC is conspicuously silent as to the results of those tests.

II. THE FAC FAILS TO STATE A VALID CLAIM FOR FABRICATION OF EVIDENCE ON THE ADDITIONAL GROUND THAT PLAINTIFF WAS NEVER CHARGED WITH ANY CRIME.

Plaintiff's second cause of action for fabrication of evidence is duplicative of his first cause of action for judicial deception and fails for the same reasons stated above. However, Plaintiff's fabrication of evidence claim also fails on the additional ground that Plaintiff cannot show that fabricated evidence was used to criminally charge, prosecute, or convict him because the FAC admits that no criminal charges were ever filed due to the incident. (ECF No. 5, FAC, ¶ 34 p.10.)

The Ninth Circuit has held that a Section 1983 plaintiff need not be convicted based on fabricated evidence to have suffered a deprivation of liberty, and that being criminally charged is enough. Caldwell v. City and County of San Francisco, 889 F.3d 1105 (2018). The Manual of Model Civil Jury Instructions for the Ninth Circuit's (Model Instructions) sets the standard jury instructions in the Ninth Circuit. The model instruction for fabrication of evidence states, in pertinent part, that "the Fourteenth Amendment protects against being subjected to criminal charges on the basis of false evidence that was deliberately fabricated." See Model Instructions No.9.38 (emphasis added). Since Plaintiff was never subjected to criminal charges due to evidence presented by Defendant Meza-Gonzalez, Plaintiff's cause of action for fabrication of evidence must be dismissed with prejudice.

III. PLAINTIFF'S CLAIM FOR WARRANTLESS ENTRY OF HIS VEHICLE FAILS AS DEFENDANTS HAD REASONABLE GROUND TO BELIEVE THAT EXIGENT CIRCUMSTANCES EXISTED AND/OR THAT PLAINTIFF HAD COMMITTED A CRIME

Plaintiff alleges that Defendants unlawfully opened his vehicle's door upon finding him asleep in his vehicle on the side of the freeway. Plaintiff's claim fails as Defendants had reasonable grounds based upon the totality of the circumstances to believe that either Plaintiff had committed a crime, or that Plaintiff may have required emergency medical assistance when Defendants first encountered Plaintiff.

A. It is reasonable to assume that Plaintiff needed emergency assistance upon finding Plaintiff unconscious in the driver's seat of his vehicle at the beginning of the encounter.

The Ninth Circuit has held that law enforcement officers may enter a home or vehicle without consent or a warrant if necessary during an emergency. See Mincey v. Arizona, 437 U.S.

385, 392, (1978) ("[T]he Fourth Amendment does not bar police officers from making warrantless entries and searches when they reasonably believe that a person within is in need of immediate aid.").

Here, the FAC alleges that Plaintiff was parked on the side of the freeway prior to encountering Defendants. (ECF No. 5, FAC, p.4:13.) The FAC further states that Plaintiff was still asleep when Defendant Melano opened the passenger side door. (Id. at ¶ 16, p.5:16-17.) From the perspective of Defendants, they acted reasonably when they opened the door of Plaintiff's vehicle to determine whether an unconscious driver needed emergency aid. Although Plaintiff alleges that no emergency existed, Defendants could not have known that before opening the door and awakening Plaintiff. As Defendants acted reasonably given the circumstances, Plaintiff's claim for warrantless entry of his vehicle must fail.

B. It is reasonable to assume that Plaintiff committed a crime upon seeing a cup of what appeared to be alcohol with Plaintiff while Plaintiff's vehicle was illegally parked on the side of the freeway

Assuming arguendo that exigent circumstances did not exist and the opening of the passenger side door of Plaintiff's vehicle constituted a warrantless search, Plaintiff's claim of illegal entry would fail nonetheless because Defendants had probable cause to believe that Plaintiff had committed a crime. Devenpeck v. Alford, 543 U.S. 146, 152 (2004) (citations omitted). California Vehicle Code section 21718 prohibits a person from parking their vehicle on the side of the freeway except in emergency situations or when directed to do so by a law enforcement officer. If Plaintiff was not suffering from a medical emergency, then stopping/parking his vehicle on the side of the freeway would be a violation of Vehicle Code section 21718. If the exigent circumstances exception does not apply, then Defendants would be justified in opening the door of Plaintiff's vehicle to investigate a crime.

Defendants also had probable cause to believe that Plaintiff was driving while intoxicated upon seeing what appeared to be booze in Plaintiff's vehicle. California Vehicle Code section 23152(a) prohibits anyone from driving a vehicle while under the influence of alcohol. (Cal. Veh. Code § 23152(a).) Here, Plaintiff alleges that Defendant originally believed that Plaintiff had booze in his vehicle upon first encountering Plaintiff. (Id. at ¶ 15, p.5:10.) According to the

FAC, Defendants did not discover the cup in Plaintiff's vehicle contained urine until they searched Plaintiff's vehicle. (Id. at ¶ 16 p. 8:5-11.)

Here, the existence of exigent circumstances and the existence of probable cause both justify Defendants' alleged warrantless entry into Plaintiff's vehicle at the beginning of the encounter.

IV. PLAINTIFF'S CLAIM RELATED TO THE SEARCH OF HIS VEHICLE AND HIS SUBSEQUENT ARREST FAIL AS THERE EXISTED PROBABLY CAUSE UNDER THE FACTS AS ALLEGED IN THE FAC

To establish a claim of unlawful search and seizure and and/or false arrest, Plaintiff must assert Defendants did not have probable cause to effectuate a search of Plaintiff's vehicle and/or arrest Plaintiff. "[A] warrantless arrest [or search] by a law officer is reasonable under the Fourth Amendment where there is probable cause to believe that a criminal offense has been or is being committed." Devenpeck v. Alford, 543 U.S. 146, 152 (2004) (citations omitted). Probable cause exists when a prudent person would have concluded there was a fair probability that the suspect had committed a crime, based on the totality of the circumstances known to the officer. Crowe v. County of San Diego, 608 F.3d 406, 434 (9th Cir. 2010). However, fair probability does not require "certainty or even a preponderance of the evidence." United States v. Gourde, 440 F.3d 1065, 1069 (9th Cir.2006). Whether probable cause existed on the facts known to the defendant is a question of law for the court. Roberts v. McAfee, Inc., 660 F.3d 1156, 1164 (9th Cir. 2011).

Stripped of Plaintiff's unsupported and conclusionary allegations of Defendants' impropriety, the factual allegations in the FAC regarding the search of Plaintiff's vehicle and Plaintiff's subsequent arrest are as follows:

1. Defendants Meza-Gonzalez and Melano encounter Plaintiff while he was asleep in his vehicle on the side of Interstate 580 East. (ECF No. 5, FAC 4:13-16.)

2. Defendants Meza-Gonzalez and Melano observe a cup in Plaintiff's vehicle, and Officer Melano remarks: "I think it's booze." (Id. at ¶ 15, p. 5:10.)

3. Defendants open Plaintiff's passenger side door while Plaintiff was still asleep. (Id. at ¶ 16, p.5:16-17.)

4. Officer Gonzalez states in his report that he detected a "strong distinct odor of an alcoholic beverage," and notes slurred speech and other signs of intoxication from Plaintiff. (Id. at ¶ 16 p. 8:5-11.)

5. Officer Gonzalez determines that the cup in Plaintiff's vehicle is filled not with booze, but with urine. (Id. at ¶ 17 pp.5:22-6:4.)

6. Defendants order Plaintiff out of his vehicle, question Plaintiff, and Defendant Melano administers some, but not all, field sobriety tests on Plaintiff as part of the DUI investigation. (Id. at ¶ 19, p.6 14-17.)

7. Plaintiff refuses a voluntarily preliminary alcohol screening test and is subsequently arrested on suspicion of DUI (Id. at ¶ ¶ 23-24, p. 7:9-12.)

Probable cause existed to search Plaintiff's vehicle and arrest Plaintiff on suspicion of DUI under these facts. After determining that Plaintiff was not experiencing a medical emergency, Defendants saw that Plaintiff displayed signs of intoxication and had a cup of urine in his vehicle. While the FAC alleges that Defendant Meza-Gonzalez falsified some statements in his sworn statements regarding how Plaintiff appeared at the time of his arrest, those allegations are conclusory statements presented without factual support and are not entitled to the presumption of truth. Iqbal, 556 U.S. at 678. Moreover, a reasonable person could determine there were reasonable grounds to believe that Plaintiff had been operating his vehicle while intoxicated based on the facts which are admitted in the FAC: i.e., that Plaintiff was asleep in a vehicle parked on the side of the freeway with a cup of urine next to him. At the very least, Defendants had probable cause to order Plaintiff to perform field sobriety tests. Notably, the FAC does not allege that Defendant Meza-Gonzalez or Defendant Melano falsified the results of Plaintiff's field sobriety tests, only that Defendant Melano "had declined to administer certain [field sobriety tests] due to ground conditions." (Id. ¶ 50, p.15-17.)

Based upon the totality of circumstances established by facts within the FAC, probable cause existed for both the search of Plaintiff's vehicle and for his subsequent arrest.

V. PLAINTIFF'S FAC FAILS TO ALLEGE SUFFICIENT FACTS TO SHOW PLAUSIBLE "BUT-FOR" CAUSATION NECESSARY FOR A VALID CLAIM OF RETALIATION.

Plaintiff alleges that he was arrested in retaliation for his refusal to perform a voluntary preliminary alcohol screening test. The facts within the FAC do not support Plaintiff's allegation that his arrest was due to retaliatory animus.

To establish a viable First Amendment retaliation claim, Plaintiff must (1) allege that the alleged conduct would chill a person of ordinary firmness from future First Amendment activity and (2) allege that the officer's desire to chill his speech was a "but-for" cause of the alleged unlawful conduct. Ford v. City of Yakima, 706 F.3d 1188, 1193 (9th Cir. 2013). The Supreme Court has defined "but for" causation as being "established whenever a particular outcome would not have happened 'but for' the purported cause." Bostock v. Clayton Cnty., 590 U.S. 644, 656 (2020). "In other words, a but-for test directs [the Court] to change one thing at a time and see if the outcome changes. If it does, [there exists] a but-for cause." Id. Under this test, if the outcome (the adverse action) would not have occurred without the government official's retaliatory animus, then that animus was a but-for cause of the adverse action. See id. Conversely, if the official would have taken the same adverse action even in the absence of their animus or retaliatory motive arising from the plaintiff's speech, then the official's animus was not a but-for cause of the adverse action, and there was no violation of the plaintiff's constitutional rights. See id.

Here, Plaintiff alleges that his arrest soon after his refusal to take the preliminary alcohol screening test and Defendant Meza-Gonzalez's statement that "If you choose to not consent to it, then it'll be up to my discretion whether I put you under arrest for DUI or not" proves retaliatory animus. (ECF No. 5, FAC ¶ 68 p.19-19:21.) This is not so. Defendant Meza-Gonzalez informed Plaintiff of the voluntary nature of the test prior to asking Plaintiff whether he consents to the test. (Id. ¶ 66, p.19:7-9.) Defendant Meza-Gonzalez also correctly stated that he had the discretion to arrest Plaintiff for DUI even if Plaintiff refuses the test. As is the pattern in the FAC, there is no indication that Defendant Meza-Gonzalez did anything improper on the facts, but Plaintiff nevertheless alleges that Defendant Meza-Gonzalez acted unlawfully. As the Court held in

Iqbal, not all allegations within a complaint are entitled to the presumption of truth at the pleadings stage and a complaint that alleges "naked assertions" that are "devoid a further factual enhancement" will not survive a Motion to Dismiss. Ashcroft v. Iqbal, 556 U.S. 662, 667 (2009). Because Plaintiff's allegations do not show that he would not have been arrested but for his refusal to submit to the preliminary alcohol screening test, Plaintiff's cause of action for retaliation should be dismissed with prejudice.

VI. DEFENDANTS ARE ENTITLED TO QUALIFIED IMMUNITY ON EACH OF PLAINTIFF'S CAUSES OF ACTION.

Plaintiff's claims against Defendants fail on the independent ground that qualified immunity applies. "Qualified immunity shields federal and state officials from money damages unless a plaintiff pleads facts showing (1) that the official violated a statutory or constitutional right, and (2) that the right was clearly established at the time of the challenged conduct." Ashcroft v. al-Kidd, 563 U.S. 731, 735 (2011); accord Chavez v. Robinson, 12 F.4th 978, 995 (9th Cir. 2021). Qualified immunity is afforded to officers if they had probable cause to make the arrest or search, or if the officers reasonably believed they had probable cause to make the arrest or search. Rosenbaum v. Washoe County, 663, F.3d 1071, 1076 (9th Cir. 2011). This applies to knowledge at the time, and not whether or not an independent prosecutor declined to press charges, or the plaintiff was found innocent. Id. An officer's decision to search or arrest is protected by qualified immunity unless "all reasonable officers would agree that there was no probable cause in this instance." Johnson v. Barr 79 F.4th 996, 1005 (9th Cir. 2023).

Regarding the first prong of the qualified immunity analysis, Plaintiff has not shown any violation of his constitutional rights, as explained above. The qualified immunity analysis should end here.

Regarding the second prong of the qualified immunity analysis, assuming, arguendo, that no probable cause existed to support the search of Plaintiff's vehicle and/or for Plaintiff's arrest, Defendants Meza-Gonzalez and Melano would still be entitled to qualified immunity as it was not "clearly established" that probable cause to search and arrest did not exist in the circumstances as pled in the FAC.

While there does not have to be a case directly on point, existing precedent must place the lawfulness of the particular arrest or search 'beyond debate. District of Columbia v. Wesby, 583 U.S. 48, 64 (2018). "The plaintiff bears the burden of proof that the right allegedly violated was clearly established at the time of the alleged misconduct." Romero v. Kitsap Cty., 931 F.2d 624, 627 (9th Cir. 1991). "Clearly established" law means precedent existing at the time of the conduct that "squarely governs the specific facts at issue." Kisela v. Hughes, 584 U.S.100, 104 (2018). "[C]ourts must not define clearly established law at a high level of generality[.]" Wesby, supra, 583 U.S. at 63.

Here, there is no "clearly established" law that should have put Defendants on notice that all reasonable officers would know that probable cause to arrest and/or search Plaintiff did not exist in the circumstances as pled in the FAC. To the contrary, it is clearly established that probable cause exists when "a prudent person would have concluded there was a fair probability that the suspect had committed a crime, based on the totality of the circumstances known to the officer." Crowe v. County of San Diego, 608 F.3d 406, 434 (9th Cir. 2010). Here, even if Defendants were factually mistaken and had arrested Plaintiff for DUI and searched Plaintiff's vehicle despite Plaintiff not actually being intoxicated at the time, the doctrine of qualified immunity would still shield Defendants from claims related to the search of Plaintiff's vehicle and his subsequent arrest because there is no "clearly established law" putting Defendants on notice that arresting Plaintiff for suspected DUI after finding plaintiff asleep in a vehicle on the side of a freeway and administrating some, but not all, field sobriety tests would violate Plaintiff's constitutional rights if no alcohol was actually found in Plaintiff's vehicle.

VII. LEAVE TO AMEND SHOULD BE DENIED AS FUTILE

Upon dismissal of any claims, the court must tell a pro se plaintiff of a pleading's deficiencies and provide an opportunity to cure such defects. Garity v. APWU Nat'l Lab. Org., 828 F.3d 848, 854 (9th Cir. 2016). However, if amendment would be futile, no leave to amend need be given. Lathus v. City of Huntington Beach, 56 F.4th 1238, 1243 (9th Cir. 2023). A court may consider facts outside of the complaint when deciding whether to grant leave to amend. Broam v. Bogan, 320 F.3d 1023, 1026 n.2 (9th Cir. 2003).

Not only has Plaintiff already amended his complaint once before this Court, this is Plaintiff's fourth lawsuit against the CHP and/or its individual officers in both state and federal courts based upon allegations arising from the November 1, 2024, incident. Prior to the filing of the instant action, Plaintiff voluntarily dismissed an action with substantively the same allegations against Defendants in the Eastern District Court, Newanforbi v. State of California, et al., Case No. 2:25-CV-1460-DC-CSK PS, following that Court's Report and Recommendation that Plaintiff's Complaint be dismissed with prejudice. (See Eastern District Court, Case No. 2:25-CV-1460-DC-CSK PS; ECF No. 12, Report and Recommendation dated April 20, 2025.) Plaintiff also recently dismissed a state court case arising from similar allegations against Defendants in the Alameda Superior Court. (See Alameda Superior Court Case, Newanforbi, v. Meza-Gonzalez, et al., Case No. 26CV168913.) Another action against CHP Captain Serrato by Plaintiff seeking U-visa certification based upon his allegations of false arrest from the same incident is currently pending. (See Northern District Court, Newanforbi v. Serrato, Case No 3:26-cv-05953-CRB.)

Defendants offer the above as context to show why leave to amend should not be granted. Plaintiff's prior litigation shows that, despite being pro se, Plaintiff is a litigant who has substantial experience with the legal process. This is not a case where Plaintiff has viable claims but is hampered by his legal lack of knowledge. Rather, Plaintiff has adopted a strategy of filing multiple lawsuits based on the same substantive claims, only to strategically dismiss each suit after a court finds his claims to be without merit to file new lawsuits elsewhere. It is now long past time for Plaintiff's meritless litigation against the CHP and its employees to end.

VIII. PLAINTIFF'S PRAYER FOR ATTORNEY'S FEES AND FOR PUNITIVE DAMAGES SHOULD BE STRICKEN OR DISMISSED

A. Plaintiff has alleged no well-pled facts which supports punitive damages against either Defendant

Plaintiff's request for punitive damages should be stricken because Plaintiff has not alleged any well-pled facts that may support a finding of punitive damages. A Motion to Strike "may be used to strike any part of the Prayer for Relief when the damages sought are not recoverable as a matter of law." Bureerong v. Uvawas, 922 F.Supp. 1450, 1479 n. 34 (CD. Cal. 1996); Wilkerson

v. Butler, 229 F.R.D. 166, 172 (E.D. Cal. 2005) (stating that "a motion to strike is appropriate to address requested relief, such as punitive damages, which is not recoverable as a matter of law.").

A jury can assess punitive damages in a federal Section 1983 action "when the defendant's conduct is shown to be motivated by evil motive or intent, or when it involves reckless or callous indifference to the federally protected rights of others." Smith v. Wade, 461 U.S. 30, 56 (1983). Here, although Plaintiff alleges that Defendant Meza-Gonzalez deliberately falsified sworn statements and fabricated evidence, a careful review of the FAC shows that Plaintiff's allegations of malicious conduct by Defendant Meza-Gonzalez are based upon nothing more than his own disagreement over the result of Defendant Meza-Gonzalez's DUI investigation. Since such allegations are not subject to the presumption of truth, they should not be sufficient to support punitive damages against either Defendant. Accordingly, Plaintiff's prayer for punitive damages found in Prayer for Relief FAC should be stricken.

1. Plaintiff is not entitled to attorneys; fees as a pro se litigant

Plaintiff seeks attorneys' fees as part of his Prayer for Relief. (ECF No. 5, FAC, Prayer for Relief pp.21-22.) While 42 U.S.C. section 1988 allows for attorney's fees for plaintiffs who prevail in section 1983 actions, an award of attorneys' fees is not available to pro se litigants. See Kay v. Ehrler, 499 U.S. 432, 438 (1991). Accordingly, Plaintiff's prayer for attorneys' fees should be stricken.

CONCLUSION

For the foregoing reasons, Defendants respectfully request that the Court dismiss all claims within Plaintiff's FAC with prejudice and strike Plaintiff's prayer for attorney's fees and punitive damages against Defendants.

Dated: October 26, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General

/s/ Haiyang A. Li

HAIYANG A. LI
Deputy Attorney General
Attorney for Defendants
Santiago Meza-Gonzalez and Jose Melano

SF2026603537
Newanforbi - Motion to Dismiss (final with tables).docx